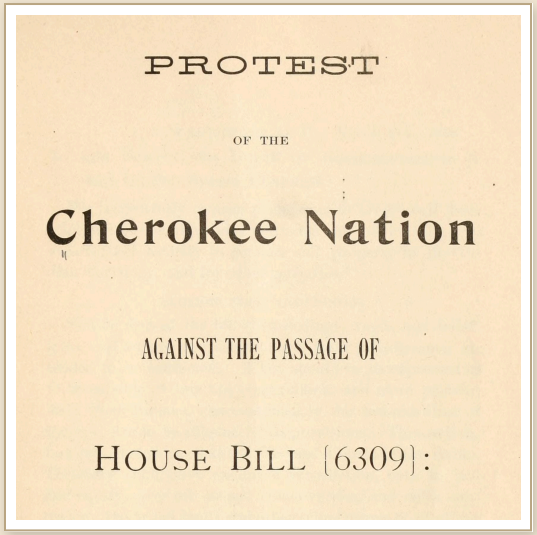


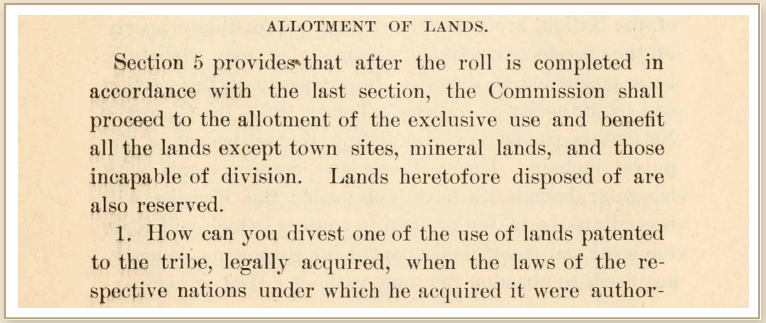
PROTEST

OF THE

Cherokee Nation

AGAINST THE PASSAGE OF

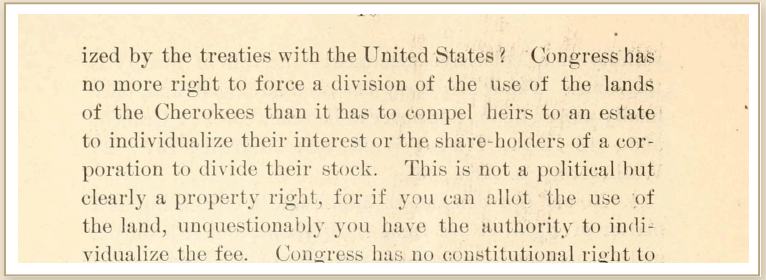
HOUSE BILL [6309]:



ALLOTMENT OF LANDS.

Section 5 provides that after the roll is completed in accordance with the last section, the Commission shall proceed to the allotment of the exclusive use and benefit all the lands except town sites, mineral lands, and those incapable of division. Lands heretofore disposed of are also reserved.

1. How can you divest one of the use of lands patented to the tribe, legally acquired, when the laws of the respective nations under which he acquired it were author-



ized by the treaties with the United States? Congress has no more right to force a division of the use of the lands of the Cherokees than it has to compel heirs to an estate to individualize their interest or the share-holders of a corporation to divide their stock. This is not a political but clearly a property right, for if you can allot the use of the land, unquestionably you have the authority to individualize the fee. Congress has no constitutional right to

Protest of the Cherokee Nation to Congress

Washington, 5 March 1896 · Printed petition · Reproduction

Cherokee delegates protest a bill to bring tribal land under federal courts and allotment: ‘Congress has no more right to force a division of the use of the lands of the Cherokees than it has to compel heirs to an estate to individualize their interest.’

The people name it

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